

Bihar State School Teachers and Employees Disputes Redressal Rules, 2013

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State of Bihar - Act

Bihar State School Teachers and Employees Disputes Redressal Rules, 2013

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Bihar State School Teachers and Employees Disputes Redressal Rules, 2013

Rule BIHAR-STATE-SCHOOL-TEACHERS-AND-EMPLOYEES-DISPUTES-REDRESSAL-RULES-2013 of 2013

Published on 20 December 2014

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Bihar State School Teachers and Employees Disputes Redressal Rules, 2013

Published vide Notification No. 7/WI. 3-80/2011-1880, dated 20.12.2014

Last Updated 6th February, 2020

No. 7/WI. 3-80/2011-1880. - Preamble - In exercise of the powers conferred under Article 162 and 243 of the Indian Constitution and the powers given in the provisions of section 47 read with section 146 of Bihar Panchayati Raj Act-2006 and in the provisions of section 46, 47 read with section 419 of Bihar Municipal Act-2007, the state government is making the following Rules for redressal of Complaints and appeals related to employment of teachers and non-teaching employees on a fixed pay in elementary, secondary and higher secondary schools (including government aided and minority schools) of the state by the Panchayati Raj institutions and urban institutions and also related to distribution of

grant and service matters of teaching and non-teaching employees of private aided secondary and higher secondary schools :-

Chapter - 1 1. Short Title, Extent and commencement.

(1) These Rules may be called "The Bihar State School Teachers and Employees Disputes Redressal Rules 2013".

(2) It shall extend to the whole of the State of Bihar.

(3) It shall come into force with effect from the date of its notification.

2.

Definitions.

- In these Rules, unless there is anything repugnant to the subject or context:-

(i)

"Elementary School" means the government /nationalised primary and middle school (government aided schools are included in it) established for imparting education up to class V or class VIII.

(ii)

"Secondary school" means the government / nationalised / project / minority school imparting education up to class X.

(iii)

"Higher Secondary school" means the government / nationalised / project / minority school up to class XII.

(iv)

"Minority school" means the school governed by the linguistic or religious community defined under clause (1) of Article 31 of the Indian Constitution and is getting grants from the government;

(v)

"Aided/established/recognised secondary and higher secondary school" means the school which is getting government grant and is governed by a management committee/governing body, Adhoc committee/ trust / body corporate.

(vi)

"Niyojit Teacher" means the teacher employed in elementary, secondary and higher secondary schools of the state according to Niyojan Niyamawali-2006 and under the successive employment Rules after that.

(vii)

"Niyojit Karmi" means the librarians, clerks, peons and other employees of the elementary / high and higher secondary schools employed according to Niyojan Niyamawali.

(viii)

"Teachers of Aided / established / recognised elementary /secondary and higher secondary school" means the headmasters and teachers appointed by the management committee/trust of these schools;

(ix)

"Non- teaching employees of aided / established / recognised secondary and higher secondary school" means the non-teaching employees appointed by the management committee of these schools.

(x)

"Government" means Bihar government.

(xi)

"Department" means the Education Department.

(xii)

"Niyojan Niyamawali" means the Niyamawali notified for employment of teachers and non-teaching employees from elementary schools to higher secondary schools.

(xiii)

"Appellate Authority" means an Appellate Authority Constituted at the district level.

(xiv)

"District Appellate Authority" means an authority constituted at the district level under Chapter 2 of these Rules.

Chapter - 2 3. Establishment of District Appellate Authority.

- The state government shall constitute a two members district Appellate Authority in each district to exercise the Jurisdiction, Powers and authority conferred to the Appellate authorities by these Rules and may also allocate the Jurisdictions among the presiding officers of the District Appellate authority from time to time.

4.

Composition of District Appellate Authority.

(1)

The District Appellate Authority shall consist of two persons only (herein after referred to as the presiding officer) to be appointed by the State Government. One presiding officer will be a retired officer of Bihar Judicial service and another will be a retired officer of Bihar Administrative service or Bihar Education Service.

(2)

Notwithstanding anything contained in subsection (1) the State Government may authorise the presiding officer of one Appellate Authority to discharge also the functions of the presiding officer of another Appellate Authority.

5.

Qualification for nomination as Presiding Officer.

- A person shall not be qualified for nomination / appointment as the presiding officer of a District Appellate Authority unless he:-

(a)

is or has been or is qualified to be a District Judge or Additional District Judge, or

(b)

has, for at least two years, held class I posts under Bihar Administrative Service or Bihar Education Service.

6.

Term of office of the presiding officer.

- The Presiding Officer of the District Appellate Authority shall hold the office for a term of 3 years from the date on which he enters upon his office or until he attains the age of 65 (Sixty five) years whichever is earlier.

7.

Appointment of Presiding Officer of the District Appellate Authority.

- The Presiding Officer of the District Appellate Authority shall be appointed by the approval of the Minister of Education Department on the recommendation of the screening committee constituted under the Chairmanship of the Principal secretary, Education Department.

8.

Resignation and removal.

(1)

The Presiding Officer of a District Appellate Authority may, by notice in writing under his hand addressed to the State Government, may resign his office;

Provided that the Presiding Officer of a District Appellate Authority shall, unless he is permitted by the State Government to relinquish his office shall continue to hold office until expiry of three months from the date of receipt of such notice or until a person duly appointed as his successor enters upon his office or until the expiry of his term of office, whichever is earlier.

(2)

The State Government may remove any Presiding Officer of the District Appellate Authority from his post due to misbehaviour or incapacity of work, laxity in discharge of responsibilities, passing orders against the set rules of the Government, having another employment on pay holding this post. But before removing him from his post, a reasonable opportunity shall be given for being heard.

9.

Salaries and Allowances of Presiding Officer.

(1)

The Presiding Officer of District Appellate Authority will get that amount of pay every month which is calculated as last basic pay minus Pension. In addition he will get a fixed sum of Rs. 10,000/- (Ten thousand) as house and transport allowances per month.

(2)

The presiding officer will be entitled for 16 days of casual leave and 20 days of medical leave in a year. In addition he can also avail an extraordinary leave for 60 days in a year without pay.

10.

Staff of the Appellate Authority.

(1)

The State Government shall determine the nature and categories of officers and other employees required to assist the

Appellate Authorities in the discharge of its function and provide the Appellate Authorities with such officers and other employees as it may think fit.

(2)

The salaries and allowances and other conditions of service of the officers and other employees of an Appellate Authority shall be such as may be prescribed by the department.

(3)

The officer and employees of an Appellate Authority shall discharge their functions under the general superintendence of the Presiding Officer.

11.

Fund for the office of Appellate Authority.

- Necessary fund will be provided to the Appellate Authority each year by the Government.

12.

Bank account and its operation.

- The Appellate Authority shall have its own bank account and seal. The bank account will be operated as per the direction of the Government.

Chapter - 3 13. Powers and functions of the District Appellate Authority.

(1)

The Appellate Authority shall hear and dispose the complaints / appeal related to employment of Niyojit teachers, librarians and other Niyojit functionaries of Government / Nationalised elementary, secondary and higher secondary schools (including government aided / minority schools). It shall also hear and dispose the disputes/appeals related to their service conditions. It shall also dispose the disputes of headmasters, teachers and other functionaries of private aided schools related to their services and distribution of grant received from the State Government.

(2)

The office of the Appellate Authority shall maintain properly all types of documents related to complaint / appeal.

(3)

All types of complaints / appeals shall be filed before the Appellate Authority within 30 days from the date of its occurrence. The Authority may condone the delay in filing the complaint / appeal which is received by the Authority after 30 days on reasonable grounds.

(4)

The District Appellate Authority, while enquiring into any matter and hearing into any matter, have the same powers as are vested in a civil court while trying a suit under the code of civil procedure 1908, in respect of the following matters, namely :-

(a)

Summoning and enforcing the attendance of persons and compel them to give oral or written evidence on oath and to produce documents and things;

(b)

Requiring the discovery and inspection of documents;

(c)

Receiving evidence on affidavit;

(d)

Issuing summons for examination of witnesses or documents;

(5)

The Presiding Officer of the Appellate Authority shall enquire and hear each complaint / dispute and shall pass order.

(6)

The Appellate Authority may get the matter enquired by the officers of education department or by any other administrative officer of the district;

(7)

The Appellate Authority may dispose off a complaint / dispute within 90 days from the day of receiving in general.

14.

Power of punishment.

(1)

The directions given for submitting required documents and the orders passed in complaint / appeal cases by the District Appellate Authority shall be complied by the concerned authorities and employment units;

(2)

The District Appellate Authority may take cognizance in case its directions and orders are not complied. The petitioner may also file a case regarding non-compliance of the order of the District Appellate Authority.

(3)

The Appellate Authority may issue notices to the parties concerned and shall give a reasonable time to comply the directions / orders;

(4)

In the case of non-compliance of the directions / orders, the Appellate Authority may impose a fine up to Rs. 25,000/- (Twenty five thousand rupees) on the responsible party. In addition to this, the Appellate Authority may also recommend for departmental proceeding and necessary actions under the provisions of Bihar Service code, Panchayati Raj Act, Municipal Act and other Rules. The Party concerned shall be given reasonable opportunity of being heard before any penalty is imposed on him. The amount of penalty shall be deposited in the Treasury in the Head communicated / specified by the department.

15.

Proceeding before an Appellate Authority to be judicial proceeding.

- All proceeding before the Appellate Authority shall be deemed to be judicial proceeding within the meaning of sections 193, 219 and 228 of the Indian Penal Code (45 of 1960)

16.

Presiding Officers and staff of Appellate Authority to be public servants.

- The Presiding Officer and the officers and other employees provided under this Rules shall be deemed to be public servant within the meaning of section 21 of the Indian Penal Code (45 of 1860)

17.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceeding shall lie against Presiding Officer or any other person authorised by such Pressing Officer for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or order made there under.

18.

Appeal.

- An appeal may be filed before the Hon. High Court Patna against the order of the District Appellate Authority.

19.

Monitoring and Report.

(1)

The Appellate Authority shall monitor the implementation of its orders;

(2)

Monthly and yearly report will be submitted to the Education Department regarding the number of complaints / applications received and the number of complaints / applications disposed off.

(3)

Details of the punishment given shall also be reported to the department.

20.

Power to remove difficulties.

- The State Government, by notification, shall have the power to remove such difficulties as arises in implementation of the provisions of these rules after due consideration.

21.

Dissolution of Appellate Authority.

- On the dissolution of Appellate Authority, its assets and liabilities shall vest in the Education Department.

22.

Repeal and savings.

(1)

All Previous notifications, resolutions, orders, directions, provisions relating to "District Teacher Employment Appellate

Authority" are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken in exercise of any power conferred by or under the said Appellate Authority shall be deemed to have been done or taken in the exercise of the powers conferred by or under these Rules, as if these Rules were in force on the day on which such thing or action was done or taken.

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